

Affirmative Action

Students for Fair Admissions (SFFA) v. Harvard

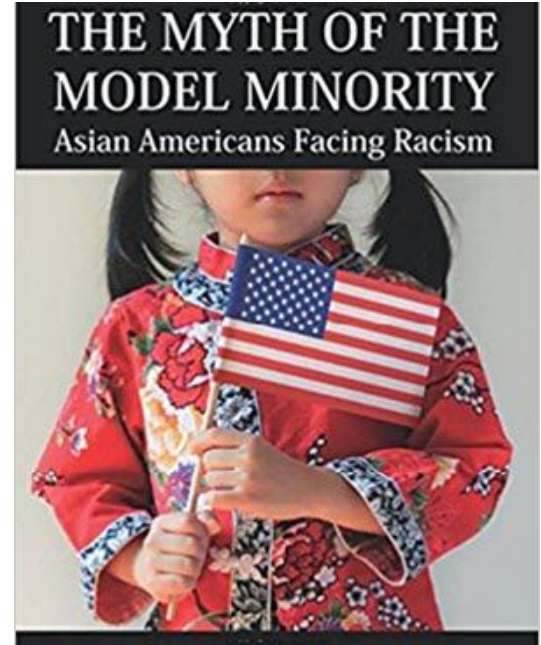
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Why Affirmative Action?

- Rise in asian hate crimes & discrimination
- A famous case which shows underrepresentation and discrimination against Asian American students
- Affirmative action in education promotes diversity
- In hope that SFFA v. Harvard case helps other colleges to take steps toward equality



Summary of SFFA v. Harvard

Students for Fair Admissions (SFFA), an organization created by anti-race conscious admissions activist Edward Blum, sued Harvard in November 2014. SFFA alleged that Harvard discriminates against Asian American applicants. The lawsuit seeks to eradicate over 40 years of established legal precedent that lets universities consider highly qualified applicants' race to encourage the benefits of a diverse learning environment. SFFA claimed that Harvard violated the Title VI of the Civil Rights Act of 1964. In October 2019, U.S. District Court Judge Allison Burroughs ruled in favor of Harvard. In November 2020, the First Circuit Court of Appeals upheld this decision, following SFFA's appeal.



Title VI of the Civil Rights Act of 1964.

Prohibition against exclusion from participation in, denial of benefits of, and discrimination under federally assisted programs on ground of race, color or national origin

No person in the United States shall, on the ground of **race, color, or national origin**, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.



Affirmative Action

A set of procedures designed to eliminate unlawful discrimination among applicants, remedy the results of such prior discrimination, and prevent such discrimination in the future. Applicants may be seeking admission to an educational program or looking for professional employment. In modern American jurisprudence, it typically imposes remedies against discrimination on the basis of, at the very least, race, creed, color, and national origin.

Education

Recipients of federal funds are required to document their affirmative action practices and metrics. Educational institutions which have acted discriminatorily in the past must take affirmative action as a remedy.



Strict Scrutiny

a form of judicial review that courts use to determine the constitutionality of certain laws. Strict scrutiny is often used by courts when a plaintiff sues the government for **discrimination**. To pass strict scrutiny, the legislature must have passed the law three to further a "**compelling governmental interest**," and must have "**narrowly tailored**", "**less restrictive way**" the law to achieve that interest.



[Plaintiff allegations: Personal ratings]

↳ In the lawsuit, the plaintiffs claimed that . . .

Harvard imposes a soft **racial quota** = keeps the number of Asian-Americans **falsely low**.

- The % of Asians admitted to Harvard was similar each year despite the significant increase in the number of Asian-American applicants reflected by the growing population of Asian-Americans.
- Plaintiffs gained access to Harvard's individualized admissions files from 2014 – 2019 and aggregate data from 2000 – 2019 during the lawsuit.
- They also interviewed and deposed numerous Harvard officials.

Through these sources, the plaintiffs revealed that:

- Harvard admissions officers consistently rated Asian-American applicants as a **group lower than others** on traits like: positive personality, likeability, courage, kindness and being widely respected.
- However, Asian-Americans **scored higher** than applicants of any other racial/ethnic group on other admission measures like: test scores, grades and extracurricular activities.
- Meanwhile, the plaintiffs also claimed that alumni interviewers (meets individual applicants unlike admission officers) gave Asian-Americans personal ratings comparable to white applicants.

Table A
Ivy League Enrollment (Asian Americans)

School	2007	2008	2009	2010	2011	2012	2013
Brown	15%	16%	15%	15%	14%	12%	14%
Columbia	17%	17%	16%	16%	16%	16%	18%
Cornell	16%	17%	17%	16%	16%	16%	16%
Dartmouth	14%	14%	15%	15%	14%	14%	14%
Harvard	15%	17%	17%	16%	17%	18%	18%
Penn	17%	17%	18%	18%	18%	18%	18%
Princeton	14%	15%	16%	17%	18%	19%	17%
Yale	14%	14%	15%	15%	15%	16%	16%

[Direct quotes from the original complaint]

“Harvard is engaging in racial balancing. Over an extended period, Harvard’s admission and enrollment figures for each racial category have shown almost no change. Each year, Harvard admits and enrolls essentially the same percentage of African Americans, Hispanics, whites, and Asian Americans even though the application rates and qualifications for each racial group have undergone significant changes over time.”

“Harvard is failing to use race merely as a “plus factor” in admissions decisions. Rather, Harvard’s racial preference for each student (which equates to a penalty imposed upon Asian-American applicants) is so large that race becomes the “defining feature of his or her application.” Grutter, 539 U.S. at 337

[Testimonies (1)]

↳ Harvard admissions staff testified that:

They did not believe that different racial groups have better personal qualities.

- Nevertheless, Asian applicants as a racial group consistently received lower personal scores over the period surveyed.
- Harvard's admissions office rated Asian-Americans with the worst personal qualities of any racial group.
- In contrast, African-Americans consistently scored the lowest on the academic rating but highest on the personal rating.

[Peter Arcidiacono]

↳ Peter Arcidiacono (a Duke economist testifying on behalf of the plaintiffs) concluded that:

- Asian-American applicants as a group performed stronger on objective measures of academic achievements and extracurriculars.
- Despite this, they received a statistically significant penalty (relative to white applicants) in the personal score + overall score assigned by Harvard.
- As a result, Asian-American applicants have the **lowest chance of admission** of all racial groups in the US **despite the highest scores in objective measurements**.

[Testimonies (2)]

↳ Peter Arcidiacono testified that:

Removing the personal score penalty of Asian applicants relative to white applicants would result in a 16% increase in the number of Asian-Americans admitted.

- He suggested that the applicant's race has a significant role in admissions decisions.

According to his testimony:

- An Asian-American applicant with certain characteristics (scores, GPA, background etc.) would result in a 25% likelihood of admission.
- If the same applicant (with the same characteristics) was:
 - Hispanic = 77% statistical likelihood of admission
 - black = 95% statistical likelihood of admission
 - white = 36% statistical likelihood of admission

Table B
Asian-American Enrollment

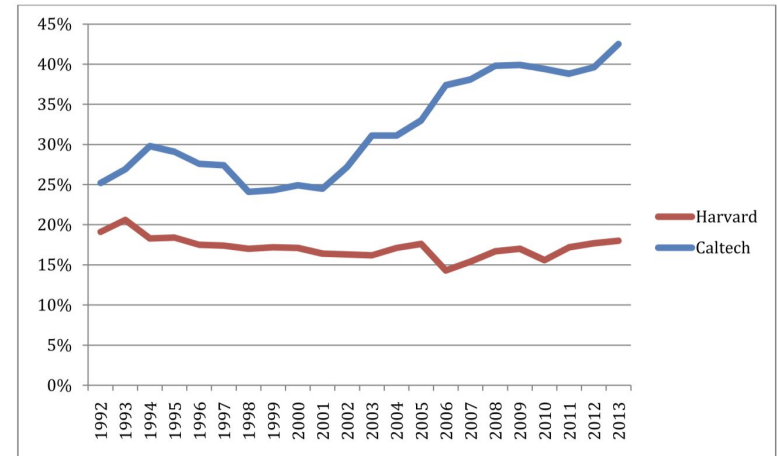
	Harvard	Caltech
1992	19.1%	25.2%
1993	20.6%	26.9%
1994	18.3%	29.8%
1995	18.4%	29.1%
1996	17.5%	27.6%
1997	17.4%	27.4%
1998	17.0%	24.1%
1999	17.2%	24.3%
2000	17.1%	24.9%
2001	16.4%	24.5%
2002	16.3%	27.2%
2003	16.2%	31.1%
2004	17.1%	31.1%
2005	17.6%	33.0%
2006	14.3%	37.4%
2007	15.4%	38.1%
2008	16.7%	39.8%
2009	17.0%	39.9%
2010	15.6%	39.4%
2011	17.2%	38.8%
2012	17.7%	39.6%
2013	18.0%	42.5%

239. Other elite colleges and universities do not consider race in their admissions process, and therefore serve as controls against which to measure Harvard's admission and enrollment figures. Those universities uniformly admit and enroll far higher percentages of Asian American students than Harvard.

240. For example, the California Institute of Technology (Caltech) is a private school that selects its students by strict academic standards and chooses not to consider race. Almost 40 percent of its undergraduates are Asian American.

241. Table B sets forth the Asian-American percentage of the total undergraduate enrollment at Caltech and Harvard.

B. Elite Schools That Use Race-Neutral Admissions Have Far Higher Asian-American Enrollment.



Plaintiff allegations: Diversity

↳ “Harvard has available race-neutral alternatives that can achieve student-body diversity”.

“Harvard is using race in admissions decisions when race-neutral alternatives can achieve diversity. As other elite universities have shown, increased utilization of non-race-based criteria, such as socioeconomic preferences, can promote diversity about as well as racial preferences.”

A. Harvard Can Achieve Student Body Diversity Without Using Race As A Factor In Admissions Decisions By Making Greater Use Of Non-Racial Preferences.

306. Colleges and universities that have eliminated race-based admissions have maintained or increased their student body diversity by placing greater emphasis on socioeconomic factors, which often strongly correlate with an applicant's race but are not exclusively reserved for applicants of a particular race or ethnicity. Using socioeconomic preferences thus increases racial diversity and achieves the broader diversity that Harvard claims to seek by opening the door of opportunity for poor students of all races.

Key Arguments for Harvard College (Defendant)

1. The Supreme Court Approval of Affirmative Action

- Regents of the Univ. of Cal. v. Bakke (1978)
- Grutter v. Bollinger (2003)
- Fisher v. University of Texas (2016)

“a university may institute a race conscious admissions program as a means of obtaining ‘the educational benefits that flow from student body diversity.’”

Source: Arcidiacono's Data

2. Strong Commitment to Diversity

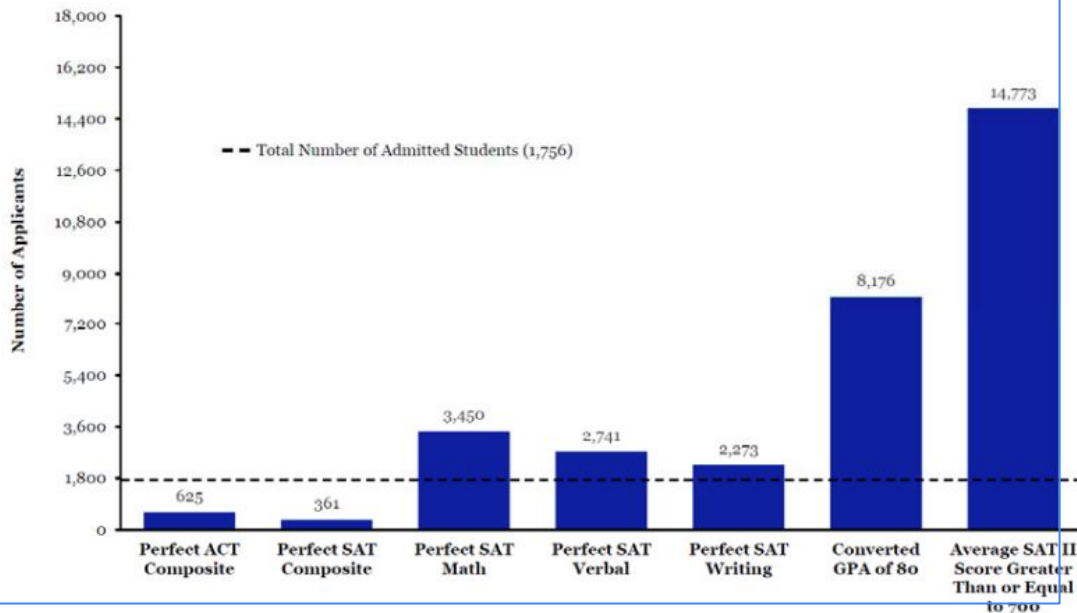
In 2019, ~55% of Harvard undergraduates receive need-based scholarships with average grant totals around \$53,000.

3. Extraordinary Applicant Pool

↑ 8,000 : perfect GPAs

↑ 3,400 : perfect SAT math scores

↑ 2,700 : perfect SAT verbal scores



4. Increase in Asian-American Admitted Students

2021: 23.4%

2019: 25.4% (highest)

5. Office of Institutional Research Documents

The documents “consistently acknowledge, the analysis was incomplete, preliminary, and based on limited inputs.”

6. Expert’s Testimony by Professor David Card

“to be admitted to Harvard, applicants must have multiple areas of strength, and race is not a determinative factor.”

Special Recruitment Applicants: “Ignoring this highly competitive group seems completely nonsensical to me...throwing away a third of the people who are going to be admitted”

7. SFFA’s flawed statistical model

Dr. Arcidiacono model:

- assume Harvard ‘does not discriminate against Asian-Americans who happen to be athletes, legacies, faculty children, staff children, or on the dean’s list, but they do as to all others.’
- “is methodologically unsound because the Harvard admissions process is a year-by-year process”
- “overlooks that the personal rating is difficult (if not impossible) to model statistically”

Conclusion - Vital Timeline

November 17, 2014 Students for Fair Admissions files a lawsuit claiming Harvard's race-conscious admissions policy unlawfully discriminates against Asian-American applicants in violation of Title VI of the Civil Rights Act of 1964.

October 2018 Trial held before Judge Burroughs in Boston's federal district court. The *Students* presented opening argument, closing argument, and offered the testimony of four witnesses.

Jan/February 2019 The *Students'* counsel filed and delivered post-trial arguments.

September 30, 2019 Judge Burroughs upholds Harvard's race-conscious policy on all counts.

October 2019 SFFA appeals the decision upholding Harvard's race-conscious policy to the First Circuit Court of Appeals. The First Circuit issued a scheduling order for the parties and *amici* to submit briefs over Spring 2020.

September 16, 2020 The Lawyers' Committee participated in oral argument on behalf of the diverse group of prospective, current, and former Harvard students defending a university's right to consider race in admissions to promote diversity and equal opportunity.

Conclusion

-October 2019

U.S. District Court judge Alison Burroughs ruled in favor of Harvard;

-November 2020

The First Circuit Court of Appeals upheld that decision, following SFFA's appeal;

-February 2021

SFFA petitioned the Supreme Court of the United States;

References

Summary:

<https://admissionscase.harvard.edu/lawsuit>

<https://lawyerscommittee.org/students-for-fair-admissions-sffa-v-harvard/#:~:text=Harvard%20College%20is%20a%20lawsuit,benefits%20of%20diverse%20learning%20environments>.

<https://harvardmagazine.com/2021/02/sffa-supreme-court-appeal-of-harvard-admissions-lawsuit#:~:text=SFFA%20brought%20its%20case%2C%20alleging,that%20decision%2C%20following%20SFFA's%20appeal>.

SFFA arguments:

<https://lawyerscommittee.org/students-for-fair-admissions-sffa-v-harvard/>

SFFA original complaint pdf: <https://studentsforfairadmissions.org/wp-content/uploads/2014/11/SFFA-v.-Harvard-Complaint.pdf>

https://en.wikipedia.org/wiki/Students_for_Fair_Admissions_v._Harvard

Harvard arguments:

https://lawyerscommittee.org/wp-content/uploads/2020/07/Docket-418_Harvards-Memo-in-Sppt-of-Motion-SJ.pdf

https://projects.iq.harvard.edu/files/diverse-education/files/expert_report_-_2017-12-15_dr_david_card_expert_report_updated_confid_designs_redacted.pdf

<https://admissionscase.harvard.edu/>

Related laws:

<https://lawyerscommittee.org/students-for-fair-admissions-sffa-v-harvard/>

<https://www.dol.gov/agencies/oasam/regulatory/statutes/title-vi-civil-rights-act-of-1964>

https://www.law.cornell.edu/wex/strict_scrutiny

[Affirmative Action | Wex | US Law | LII / Legal Information Institute \(cornell.edu\)](#)

SFFA PETITION FOR WRIT OF CERTIORARI PDF: February 25, 2021

<https://samv91khoyt2i553a2t1s05i-wpengine.netdna-ssl.com/wp-content/uploads/2021/02/SFFA-Harvard-Cert-FINAL-SFFA-Petition-for-Certiorari.pdf>

District Court's Decision Upholding Harvard's Race-Conscious Policy (September 30, 2019)